

MI.5 Forms & Documents Index

Every document a Michigan owner-builder meets — what each one is, when it is needed, and which office it comes from.

Before you use this document

This is a process reference, not legal advice. Michigan's construction code is a single statewide code, but it is administered by more than 1,800 separate units of government — and your township, city, county, or the state Bureau of Construction Codes may each enforce a different trade on the same parcel. Confirm every item with the enforcing agency that will actually issue your permit before you rely on it. Form names and numbers below are the State's. If a county or local agency issues your permit, its forms will differ — the obligations behind them will not.

Documents a Michigan owner-builder will encounter

Document	What it is and when you need it	Where it comes from
Statewide Jurisdiction List	Not a form — the lookup that tells you which agency issues each of your four permits, discipline by discipline, for your exact unit of government. When: before you fill in anything else, and again the week you file. Free.	LARA Bureau of Construction Codes — michigan.gov/bcc
Building permit application	The main application. Carries the section 23a licensing warning above your signature, the five environmental control approvals, and the sealed-plans statement. When: after zoning, health department and soil erosion are lined up.	Your enforcing agency. State form: BCC-324 (Rev. 04/24)
Electrical permit application	Separate permit, separately priced per circuit, service size and fixture count. A homeowner may obtain it for a single-family home and accompanying outbuildings they own and will occupy — if they do the work themselves.	Possibly a different agency. State form: BCC-339
Mechanical permit application	Separate permit. An owner of a single-family dwelling who occupies or will occupy it may perform the work without a license — but not without this.	Possibly a different agency. State form: BCC-9
Plumbing permit application	Separate permit, covering the building sewer and private sewer as well as the house plumbing — which matters on a septic site.	Possibly a different agency. State form: BCC-327
Construction documents and site plan	<i>"Full and complete copies of the plans drawn to scale,"</i> plus a site plan showing dimensions and the location of the proposed building <i>and every other structure on the premises</i> . Two sets is the State's requirement. When: with the application.	You or your designer

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Verified affidavit of the specifications	Michigan's statutory affidavit is about your plans , not about your occupancy: you swear the specifications and plans " <i>are true and complete and contain a correct description of the building or structure, lot or parcel, and proposed work.</i> " It is printed on the application itself.	Part of the permit application
Sealed plans — only over the threshold	An architect's or engineer's seal is not required for a one- or two-family dwelling under 3,500 square feet of calculated floor area — and "calculated floor area" counts habitable space only, excluding basements, garages, attics, bathrooms, closets, hallways and utility rooms. Do the arithmetic before you pay for a seal. See MI.2.	A licensed architect or professional engineer, if you need one at all
Local homeowner affidavit / homeowner permit form	Many enforcing agencies add their own acknowledgement that you are acting as your own builder and accept the responsibility a licensed contractor would. This is a local instrument, not a state one — its terms vary, so read it before signing.	Your enforcing agency, if it uses one
Written instrument designating a builder or agent	If anyone else will apply or act for you, they are not recognized until a construction contract, power of attorney or letter of authorization is filed with the enforcing agency — stating their license number and its expiry date.	Filed with the enforcing agency
Zoning approval	Use, setbacks, height, lot coverage, accessory buildings. Never preempted by the construction code and never handled by the State. When: before you draw, not after.	Township, city or village
Fire district approval	One of the five approval lines on the permit application. On a rural parcel expect access width, turnaround and water supply questions.	Local fire authority
Septic permit	Michigan regulates on-site wastewater through local health departments , and the rules genuinely differ between them. Start the soil evaluation as early in the year as the ground allows — this is the longest pole on a rural build. When: first.	County or multi-county district health department
Well permit and water test	Required before a private well is drilled, with water testing after completion. Confirm with your health department who draws the sample and who pays for it.	County or district health department
Soil erosion and sedimentation control permit (Part 91)	Required for a regulated earth change. The county enforces throughout the county unless your municipality has adopted its own department-approved ordinance, which may be stricter . Ask for the trigger that applies to your parcel. When: before any earth is moved.	County enforcing agency, or your municipality if it has assumed it

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SESC transfer notice	If you buy a parcel already under a soil erosion permit, the permit, its conditions <i>and responsibility for existing violations</i> transfer to you — and the seller must give you signed written notice on a state-developed form, filed with the enforcing agency before the transfer. Ask for it.	The seller, on a form from the enforcing agency
Floodplain determination	The fifth approval line. Required where the parcel sits in a mapped special flood hazard area; EGLE permits development in a regulated floodplain.	Enforcing agency; EGLE for a floodplain permit
Driveway / road tie-in permit	Michigan county road commissions are separate bodies from county government and issue their own driveway permits. If you connect to a state trunkline — an I-, US- or M- numbered route — it is MDOT instead.	County road commission, or MDOT on a trunkline
Certificate of use and occupancy	Michigan's statutory name for what everyone calls the CO. The building " <i>shall not be used or occupied in whole or in part</i> " until it issues, and the agency must issue it within 5 business days of a written application once you are entitled to it. It records the code edition your permit was issued under — keep it.	Enforcing agency, at the end. \$50 on the state schedule
Temporary certificate of use and occupancy	May be issued on request for part of the building before all the work is complete, if that part can be occupied safely.	Enforcing agency, on written request

WHAT NEEDS NO PERMIT AT ALL

Michigan's code rule lists the work that is exempt from a permit. The exemption is from the **permit** only — "*exemption from the permit requirements of the code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of the code or any other laws or ordinances.*" The ones that matter on a house build:

- **One-story detached accessory structures** up to **200 square feet** of floor area.
- **Fences** not more than **7 feet** high, and **retaining walls** not more than **4 feet** from the bottom of the footing to the top of the wall, unless supporting a surcharge.
- **Sidewalks and driveways** not more than 30 inches above adjacent grade, not over a basement or story below, and not part of an accessible route.
- **Detached decks, porches and patios** up to 200 square feet, no more than 30 inches above grade, not attached to and not within 36 inches of the dwelling, and not serving any ingress or egress door.
- Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work; playground equipment; and a prefabricated above-ground pool under 24 inches deep and 5,000 gallons.

Two statutory exemptions sit outside the code rule as well. **No building permit is required for ordinary repairs**, and none is required for "*a building incidental to the use for agricultural purposes of the land on which the building is located if the building is not used in the business of retail trade.*" That agricultural exemption is real and frequently misused — it turns on the **use of the land**, not on what the building looks like, and it does not exempt you from zoning. Ask before you rely on it.

R 408.30505, amending IRC § R105.2 (Part 5, Michigan Residential Code); MCL 125.1510(7), (8). Zoning is separate from the construction code and is not waived by any of these exemptions.

Sources (verified August 2026; statutes at legislature.mi.gov, rules at ars.apps.lara.state.mi.us, forms at michigan.gov/bcc). Application contents, the verified affidavit of the specifications, and the site plan — MCL 125.1510(1). The written instrument required before an agent or builder is recognized, with license number and expiry — MCL 125.1510(2). The section 23a warning above the signature — MCL 125.1510(4). Ordinary repairs and agricultural buildings — MCL 125.1510(7), (8). Certificate of use and occupancy, the 5-business-day issue clock, and the temporary certificate — MCL 125.1513. Soil erosion permit transfer and the notice to the buyer — MCL 324.9112(3)-(5); county and municipal enforcement — MCL 324.9105(1), 324.9106. The 3,500 square foot calculated-floor-area seal threshold and its definition — MCL 339.2012(1)(d), (2). Work exempt from permit — R 408.30505. State form numbers and fees — BCC-324, BCC-339, BCC-9 and BCC-327, all Rev. 04/24, and the BCC Fee Schedule effective April 1, 2024.